

LEAVE WITHOUT PAY

This regulation has been established to support School Board Policy 7722 (Leave Without Pay) for employees who may require leave without pay.

A. Leave Without Pay – Generally. Leave without Pay for a period of greater than 5 working days may be granted to any benefit-eligible employee of the Loudoun County Public Schools for reasons related to an emergency, childcare, additional education, or restoration of health. If the employee is still on probation at the time the leave without pay is used, the probationary period will be extended by the length of the granted leave without pay period(s).

B. Religious Observation. An employee is not required to have exhausted all applicable leave in order to be granted leave without pay for an absence due to religious observance under Policy 7730- Religious Observation.

C. Leave Without Pay - 5 Days or Fewer. Employees may be granted Leave without Pay not to exceed five (5) working days in any one contract/appointment year provided the following conditions are satisfied:

1. All sick, personal or annual leave has been exhausted.
2. The employee has submitted a written request 20 working days prior to the first date of absence. In cases of unanticipated absences, employees must notify the supervisor of the need for leave as soon as practical.
3. The employee will experience no change to eligibility or cost of benefits. Employees will be required to pay any benefits premiums missed due to leave without pay. Premiums will be deducted from the employee's paycheck when the leave without pay period has ended.
4. Employees who do not return to employment with LCPS from Leave without Pay will be billed for any missed premiums prior to termination. Any premium payments not paid will result in the cancellation of the benefit at the end of the month of the last payment.
5. The employee will experience no change in employment status as a result of taking Leave without Pay for 5 working days.
6. Leave without Pay in excess of 5 working days may result in disciplinary action.
7. The employee's Leave without Pay is approved by their supervisor.

D. Emergency or Childcare Leave without Pay

1. Eligibility. Leave without Pay for emergencies such as personal or family hardship of an unusual nature, birth, adoption, foster or childcare, may be granted to any benefit-eligible employee.

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2. Period of Leave. The employee may request Leave without Pay for emergencies such as personal or family hardship of an unusual nature, birth, adoption, foster or childcare for a child under 13 years old or disabled if older than 13, for a period not to exceed one (1) year. Leave without Pay is available one (1) time per year, calculated on a rolling backward calendar basis, and may not be taken in consecutive years.

3. Application

- a. The employee shall submit an application For Leave Without Pay and supporting documentation to HRTD, Leave & Disability Programs.
- b. For Leave without Pay for childcare needs, the employee must provide 20 working days advance notice of the date the desired leave is to begin or as soon as practical in the case of an emergency. 10- or 11-month employees who desire to take this leave for the upcoming school year must apply by July 30.

4. Employment Status. An employee granted Leave without Pay for emergency or childcare is not eligible to work for LCPS in any capacity during their term of Leave without Pay, including but not limited to coaching, mentoring, curriculum development or substitute teaching.

5. Benefits. The employee may elect to continue health coverage during the period of Leave without Pay by paying the total cost of premiums through enrollment in COBRA. The employee may elect to continue life insurance coverage by notifying the Employee Benefits office and making payments to the Business & Finance Department for monthly premiums.

6. Return to Work

- a. An employee granted emergency or childcare Leave without Pay shall notify HRTD, in writing, at least 30 working days prior to the expiration of the leave of the employee's intent and availability to return to duty. Failure to provide such notification may be deemed a resignation by the employee, effective as of the first work day following the expiration of the leave.
- b. The employee shall be placed by HRTD in a vacancy for which HRTD deems the employee is qualified. If a position is declined, the employee will be considered as resigned.
- c. HRTD has up to one (1) year to identify a suitable vacancy for an employee who takes Emergency or Childcare Leave without Pay. If no vacancy is identified within one (1) year, the employee will be separated.

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- d. An employee who returns to full-time employment is required to review/attend the employee benefits orientation and re-enroll in benefits within 30 days of their scheduled return date.
- e. Any employee granted Emergency or Childcare Leave shall bear the sole responsibility for the application and purchase of any Virginia Retirement Service credit for which the employee may be eligible.

E. Educational Leave without Pay

1. Eligibility. Educational Leave without Pay for the purpose of student teaching, obtaining an initial teacher license, licensure in a critical field, professional licensure or certification of non-teaching employees, or an advanced degree may be granted to an employee. The supervisor of the employee may recommend to HRTD that this request be approved or denied based on the business needs of the worksite. In no case will such leave be permitted to begin without the prior approval of the Chief Human Resources Officer or designee.

2. Period of Leave. The employee may request Educational Leave without Pay for a period of not more than fourteen (14) weeks. The period of Educational Leave without Pay must coincide with a term length at an accredited university or college.

3. Application. The employee shall submit a written request to HRTD for Educational Leave without Pay at least twenty (20) working days in advance of the date the desired leave is to begin. The employee shall also submit supporting documentation to HRTD, including, but not limited to degree or certification requirements, documentation of course availability, and other documentation as may be requested by HRTD.

4. Employment Status. Approval shall not be granted unless the Chief Human Resources Officer or designee has determined that a highly qualified substitute for the employee is available, if required by the business needs of LCPS. During the period of time of an employee's Educational Leave, a suitable substitute may be employed in anticipation of the employee's return to the position vacated as a result of the Educational Leave. The employee will experience no change to employment status during the term of their Educational Leave without Pay.

5. Benefits

- a. During the term of Educational Leave without Pay, the employee may elect to continue health and/or life insurance coverage by making arrangements with the Employee Benefits to pay premiums.
- b. Any employee granted Educational Leave without Pay shall bear the sole responsibility for the application and purchase of any Virginia Retirement Service credit for which the employee may be eligible.

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6. Return to Work. The employee will return to the position that they held at the completion of the approved leave period after the term of Educational Leave without Pay has concluded.

F. Restoration of Health Leave without Pay

1. Eligibility. Restoration of Health Leave without Pay may be granted to any employee with a debilitating or life-threatening illness or injury for the restoration of the employee's health or the health of the employee's spouse, child, parent or legal dependent with a debilitating or life-threatening illness or injury.

2. Period of Leave. The employee may request Restoration of Health Leave without Pay for a period not to exceed one (1) calendar year, provided all earned leave has been exhausted. This leave is available one (1) time per calendar year, is calculated on a rolling backward calendar basis and may not be taken in consecutive calendar years.

3. Application. The employee shall submit an Application For Restoration of Health Leave Without Pay to the HRTD Leave & Disability Programs Office at least 15 days in advance of the date the desired leave is to begin or as soon as practicable. The request shall be accompanied by supporting documentation from the healthcare provider attesting to the need for such leave. The employee shall provide any additional documentation as may be required by the HRTD Leave & Disability Programs Office.

4. Employment Status. An employee granted Restoration of Health Leave without Pay is not eligible to work for LCPS in any capacity during the term of their leave, including, but not limited to coaching, mentoring, curriculum development or substitute teaching.

5. Benefits

- a. Employer paid benefits will remain in place for the first thirty (30) working days of Restoration of Health Leave without Pay. The employee will be required to pay the employee premiums of any benefits if applicable.
- b. The employee may elect to continue health coverage during the term of their Restoration of Health Leave without Pay by paying the total cost of premiums through enrollment in COBRA. The employee may elect to continue life insurance coverage by notifying the Employee Benefits office and making payments to the Business & Finance Department for monthly premiums.
- c. Any employee granted Restoration of Health Leave without Pay shall bear the sole responsibility for the application and purchase of any Virginia Retirement Service credit for which the employee may be eligible upon their return.

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- d. Restoration of Health Leave without Pay is separate and distinct from leave granted under the Family and Medical Leave Act. See Policy 7716 for leave without pay approved under the Family and Medical Leave Act.

6. Return to Work

- a. Notice of return to work from Restoration of Health Leave without Pay must be provided to HRTD Leave and Disability Programs Office at least two (2) weeks prior to the anticipated return to work date. If the employee is absent due to their own serious health condition, a return to work release from the treating healthcare provider is required. If the employee is absent due to the serious health condition of a spouse, child or parent, no release is required.
- b. If the employee returns to work within the first thirty (30) working days of Restoration of Health Leave without Pay, the employee will remain in the same position they held prior to the commencement of the leave period..
- c. After the initial thirty (30) working days the employee returning from Restoration of Health Leave without Pay shall be placed by HRTD in a suitable vacancy when they are able to return to employment. If the position proposed by HRTD is declined by the employee, the employee will be considered as resigned.
- d. HRTD has up to one (1) year after the end of the Restoration of Health Leave without Pay to identify a suitable vacancy for which HRTD determines the employee is qualified. If no vacancy is identified within one (1) year, the employee will be separated.
- e. An employee who returns to full-time employment after Restoration of Health Leave without Pay is required to review/attend the employee benefits orientation and re-enroll in benefits within 30 days of their scheduled return date.